

SOUTHERN CALIFORNIA PUBLIC-ENTITY RISK ALLIANCE

SCPERA — A Joint Powers Authority

Member Services & Coverage Administration

1801 Century Park East, Suite 900 · Los Angeles, California 90067

MEMORANDUM OF COVERAGE

Declarations & Schedule of Coverage

Coverage Document No.:	SCPERA-MOC-2025-ACTD-0074	Issue Date:	06/24/2025
Program Year:	2025–2026	Effective:	12:01 a.m. PT, 07/01/2025
Supersedes:	SCPERA-MOC-2024-ACTD-0071 (7/1/2024–6/30/2025)	Expiration:	12:01 a.m. PT, 06/30/2026

ITEM 1. NAMED COVERED PARTY

Alder Creek Transit District (“the District”)

A California public transit special district organized under the Public Utilities Code

1200 Alder Creek Way

Rivergate, CA 91766

Main: (626) 555-0100

Additional Covered Parties: The District’s Board of Directors, elected officials, appointed officials, officers, employees, volunteers, and agents while acting within the course and scope of their duties for the Named Covered Party, subject to the terms of the Memorandum.

ITEM 2. COVERAGE PERIOD

07/01/2025 to 06/30/2026, both dates at 12:01 a.m. Pacific Time at the address of the Named Covered Party stated above.

ITEM 3. COVERED PROGRAMS (LINES OF COVERAGE)

The following lines are afforded under this Memorandum of Coverage on a per-occurrence basis except where noted:

Line	Program
A	General Liability (bodily injury, personal injury, property damage)
B	Automobile Liability (owned, hired, non-owned; revenue and non-revenue vehicles)
C	Public Officials Liability / Errors & Omissions

Coverage is written on an occurrence basis for Lines A and B and on a claims-made-and-reported basis for Line C.

ITEM 4. COVERAGE TOWER

The financial responsibility structure for each covered occurrence arising under Items 3.A, 3.B, or 3.C is as follows:

Layer 1 — Self-Insured Retention (District Retained Layer)

- Retained by: Alder Creek Transit District
- Amount: **\$2,000,000** per occurrence
- Basis: self-insured retention, inclusive of loss and allocated loss adjustment expense (ALAE)
- Funding: District Risk Management Internal Service Fund (Fund 605)

Layer 2 — SCPERA First Excess Pooled Layer

- Issuer: Southern California Public-Entity Risk Alliance (SCPERA)

- Amount: **\$8,000,000** per occurrence, excess of the \$2,000,000 self-insured retention identified in Layer 1
- Attachment Point: \$2,000,000
- Pool Share: 100% pooled among SCPERA member entities pursuant to the Joint Powers Agreement and the SCPERA Master Pooling Agreement (rev. 07/2023)

Layer 3 — Pooled Excess to Program Limit

- Issuer: SCPERA (in conjunction with reinsurance placements as scheduled in Endorsement 3)
- Amount: additional pooled excess, attaching at \$10,000,000, up to the program aggregate limit
- **Program Aggregate Limit: \$25,000,000** per occurrence / \$25,000,000 annual aggregate

Program Aggregate: The maximum total amount payable under Layers 2 and 3 combined, for all occurrences during the Coverage Period, shall not exceed \$25,000,000.

ITEM 5. RETAINED LIMIT AND EXHAUSTION

SCPERA's obligation under Layer 2 attaches only upon exhaustion of the \$2,000,000 self-insured retention by actual payment of loss and/or ALAE by the Named Covered Party or on its behalf. Reserves, incurred-but-not-paid amounts, and defense-cost expenditures that have not been paid do not erode the retention for purposes of attachment.

ITEM 6. DEFENSE

The District is responsible for the investigation, defense, and settlement of all claims within the self-insured retention. SCPERA reserves the right, but not the duty, to associate in the defense of any claim reasonably expected to exceed 50% of the retention. Upon exhaustion of the retention, SCPERA shall have the right to associate in or assume the defense of any covered matter.

ITEM 7. NAMED COVERED PARTY CONTACT

Risk & Claims Manager: Gordon Espinoza
Alder Creek Transit District
1200 Alder Creek Way, Rivergate, CA 91766
Phone: (626) 555-0134
Email: gespinoza@actd.gov

General Counsel: Diane Farkas
Phone: (626) 555-0122
Email: dfarkas@actd.gov

ITEM 8. BROKER OF RECORD

Alliant Insurance Services, Inc. — Public Entity Group
1301 Dove Street, Suite 200
Newport Beach, CA 92660
Producer: (as identified in the annual renewal file maintained by SCPERA Member Services)

ITEM 9. THIRD-PARTY ADMINISTRATOR (TPA)

Carl Warren & Company
Public Entity Claims Division
2 MacArthur Place, Suite 500
Santa Ana, CA 92707

Assigned Claims Handler: as designated per notice of loss.

The TPA is authorized to administer, adjust, and (within delegated authority) settle claims falling within the self-insured retention on behalf of the Named Covered Party. Settlement authority above the retention requires SCPERA concurrence.

ITEM 10. NOTICE OF OCCURRENCE

Notice of occurrence, claim, or suit shall be given to SCPERA as soon as practicable, and in any event within thirty (30) days of the District's receipt of written notice of claim or service of suit that involves or is reasonably expected to involve amounts approaching or exceeding the self-insured retention. Notice shall be transmitted to:

Claims Notice

Southern California Public-Entity Risk Alliance

Attn: Excess Claims Unit

1801 Century Park East, Suite 900

Los Angeles, CA 90067

Email: claims-notice@scpera.org

ITEM 11. SCHEDULE OF FORMS AND ENDORSEMENTS

No.	Title
SCPERA-MOC-100 (07/23)	Memorandum of Coverage — General Terms and Conditions
SCPERA-END-01	Named Covered Party Schedule
SCPERA-END-02	Public Officials Liability — Claims-Made Terms
SCPERA-END-03	Reinsurance and Pooled Layer Schedule
SCPERA-END-07	Sexual Abuse and Molestation Sub-Limit
SCPERA-END-11	Punitive Damages Exclusion (California Public Entity)
SCPERA-END-14	Nuclear, Biological, Chemical, Radiological Exclusion
SCPERA-END-19	Cyber Liability Exclusion (separately placed)

ITEM 12. DISCLOSURE STATUS

The information contained in this Memorandum of Coverage constitutes an “application for insurance, or any policy or contract of insurance” within the meaning of California Code of Civil Procedure section 2017.210 and is subject to mandatory disclosure upon proper request in a pending civil action to which the Named Covered Party is a party. Nothing herein constitutes a waiver of any coverage defense, condition, exclusion, or reservation of rights available under the Memorandum of Coverage or the Master Pooling Agreement.

AUTHORIZATION

Issued on behalf of Southern California Public-Entity Risk Alliance:

For SCPERA:

/s/ Ellen J. Whitmore

Ellen J. Whitmore
Chief Underwriting Officer, SCPERA
Date: 06/24/2025

Countersigned for the Named Covered Party:

/s/ Gordon Espinoza

Gordon Espinoza
Risk & Claims Manager, Alder Creek Transit District
Date: 06/27/2025

END OF DECLARATIONS —

GENERAL TERMS AND CONDITIONS

SCPERA-MOC-100 (07/23) FOR